

Environmental and Natural Resources Management (Effluent and Solid Waste Management) (Amendment) Regulations, 2011 (No. 1)

IT is hereby notified that the Minister of Environment and Natural Resources Management has, in terms of section 140 of the Environment Management Act [*Chapter 20:27*], made the following regulations:—

1. These Regulations may be cited as the Environmental and Natural Resources Management (Effluent and Solid Waste Management) (Amendment) Regulations, 2011 (No. 1).

2. The Environmental and Natural Resources Management (Effluent and Solid Waste Management) Regulations, 2007, published in Statutory Instrument 6 of 2007 is amended—

(a) by the addition of the following definitions in section 2—

““agricultural waste” means waste whether solid or liquid generated from agricultural activities;

“domestic waste” means household waste;

“industrial waste” means waste whether solid or liquid generated from any industrial activity;

“mining waste” means waste whether solid or liquid generated from any mining activity”.

(b) by the insertion of section 5(5) after section 5(4) as follows—

“(5) Anyone who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 14 or 2 years imprisonment or both such fine and imprisonment.”.

3. The First Schedule of the Environmental and Natural Resources Management (Effluent and Solid Waste Management) Regulations, 2007, published in Statutory Instrument 6 of 2007, is hereby repealed and substituted by the following—

Environmental and Natural Resources Management (Effluent and Solid Waste Management) (Amendment) Regulations, 2011 (No. 1)

"FIRST SCHEDULE

1. Fees for financial guarantees for security for complying with environmental conditions for reclamation of mines and the mining operations will be based on the third party costs to rehabilitate land that is disturbed as a result of the mining operations.
2. Fees for the benefit of exploiting the environment at the point of sale shall be 2% of the proceeds of the sale at Minerals Marketing Corporation of Zimbabwe that shall be retained thereat and remitted to the Agency.

	US\$
3. Fees for appeal to the Minister against the decision of the Agency	\$10,00
4. Fees for viewing of register	\$42,00
5. Annual registration fees (all waste types)	\$32,00
6. Issue of duplicate licence (all types)	\$21,00
7. Annual monitoring fee (all waste types)—	
(a) Blue licence	\$80,00
(b) Green licence	\$155,00
(c) Yellow licence	\$300,00
(d) Red licence	\$585,00

ENVIRONMENTAL LEVY

8. Quarterly discharge levy per kilo litre of the total volume of liquid waste or effluent disposed by the holder of a—

(a) Blue licence	US\$80,00
(b) Green licence	US\$150,00+ US0.0075 x volume of effluent discharged
(c) Yellow licence	US\$300,00 + US0.015 x volume of effluent discharged
(d) Red licence	US\$585,00+ US 0.03 x volume of effluent discharged
9. Quarterly solid waste disposal levy in respect of the disposal of Municipal or Agriculture [domestic only] solid waste on land by the holder of a—

	US\$
(a) Blue licence	\$160,00
(b) Green licence	\$310,00
(c) Yellow licence	\$600,00
(d) Red licence	\$1 200,00

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erly discharge levy in respect of the disposal of industrial, mining, or other type of sludge or solid waste on land for the holder of—

Blue licence	US\$295,00
Green licence	US\$578,00+0,015 x volume of effluent discharged
Yellow licence	US\$1 148,00+0,03 x volume of effluent discharged
Red licence	US\$2 400,00+0,06 x volume of effluent discharged

Monitoring fee in terms of paragraph 7 will be billed annually in advance.

Discharge levy in terms of paragraphs 8, 9 and 10 will be billed quarterly in advance based on the verified submissions for the quarter or submissions from the previous quarter obtained from the licence holder. It will be payable within 30 days from the date of invoicing.

Volume of discharge is measured in kilo litres.

Volume discharged underground is the difference between the effluent discharged to the disposal area and the collected leachate and or the collected effluent. The quality is that of influent.

Administration fee will be charged on all fees."